Spotify Kids Privacy Policy

Effective as of 1 September 2021

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1. About this Policy

This Policy describes how we process your and your child's personal data when using Spotify Kids. The aim of this Policy is to explain how Spotify gives your child a great experience when using Spotify Kids, and in particular to:

1. ***Ensure that you understand what personal data we collect about you and your child when using Spotify Kids, the reasons why we collect and use it, and who we share it with;***

2. ***Explain the additional privacy and security measures and controls we have implemented for Spotify Kids in order to provide a good environment for your child; and***

3. ***Explain the available rights and choices in relation to the personal data we collect and process about you and your child when using Spotify Kids, and how we will protect the privacy of your child.***

This information can also be found in our Kids resource, designed to be understood by the older children using Spotify Kids.

The Spotify® Premium for Family Terms and Conditions is a separate document outlining the legal contract between you and Spotify for using the Spotify Premium Family Plan, including Spotify Kids.

2. Parental controls and security

We are committed to protecting your and your child's personal data. We implement appropriate technical and organisational measures to help protect the security of your child's personal data; however, be aware that no system is ever completely secure. We have implemented various policies including pseudonymization, encryption, access, and retention policies to guard against unauthorised access and unnecessary retention of personal data in our systems.

To help ensure a good environment for your child when using Spotify Kids, we've also implemented the following controls:

- *Parental protection - in order to access and enable certain functions in Spotify Kids, such as creating or deleting a child's account and changing the account settings, you as a parent need to provide a verification code. This allows you to control what features your child may use on Spotify Kids and prevents your child from changing settings by themselves.*
- *Appropriate content - Spotify Kids will only contain age-appropriate content, selected by our editors. At account setup, you will have the option to select what kind of content your child's Spotify Kids account should contain.*

In the Spotify Privacy Policy you can learn more about the rights and preferences applicable to any of your personal data which is processed by Spotify. You can, at any time, access the personal data associated with the Spotify Kids account. In addition, you can always request that we delete the personal data associated with the Spotify Kids account. If you request deletion of your own Spotify account, the personal data associated with the Spotify Kids account will automatically be deleted.

If you have any questions about your child's privacy, your rights, or how to exercise them, please contact our Data Protection Officer using the "Contact Us" form on the Privacy Center. We will respond to your request within a reasonable period of time upon verification of your identity. You also have the right to contact the Swedish Authority for Privacy Protection or your local data protection authority about any questions or concerns.

3. Personal data we collect about you and your child

These tables set out the categories of personal data we collect and use.

Collected when you sign up for the Spotify Kids Service *or when you update your account*	
Categories of personal data	*Description of category*
User Data	*Personal data that we need to create your Spotify Kids account and which enables you and your child to use Spotif Kids. This includes your child's name. You also have the option to provide us with your child's birthdate and select a color and an avatar in order to make your child's Spotify Kid account more personalized. In addition, we use the country you provided in your Spotify account.*

Collected through your use of the Spotify Kids Service	
Categories of personal data	***Description of category***
Usage Data	***Personal data collected about you and your child when you accessing and/or using Spotify Kids:*** ● ***Information about how you use Spotify Kids including your actions with Spotify Kids, such as date and time of content you have listened to or saved, search queries, and account settings.*** ● ***Your technical data, for example:*** ○ ***URL information,*** ○ ***IP addresses,*** ○ ***information about devices you use such as: device IDs, network connection type (e.g. WiFi, 3G, LTE, Bluetooth) and provider, network and device performance, browser type, language, information enabling digital rights management, operating system, and Spotify application version.***

	• ***Your general (non-precise) location. This is understood from technical data (e.g. your IP address or language setting of your device) and is needed to meet geographic requirements in our agreements with owners of content on Spotify Kids.***

Collected from third party sources	
Categories of personal da	***Description of category***
Third party applications a devices you connect to your Spotify Kids accoun	***If you connect your Spotify Kids account to a thi party application and/or device(s), we may colle certain information from them to make the integration possible.*** ***We will only collect personal data from these thi parties when you as a parent allow us to do so, e.g. by selecting the appropriate setting, allowin bluetooth connection on the device, and/or by providing your consent.***

Technical service partner	*We work with technical service partners that giv us certain data, such as mapping IP addresses t non-precise location data (e.g., city, state, or pos code).* *This makes it possible for us to provide Spotify Kids content and features.*

4. Our purpose for using your personal data

The table below sets out:

- *our purpose for processing your personal data*
- *our legal justifications (each called "legal basis") under data protection law, for each purpose*
- *categories of personal data which are used for each purpose (these categories are defined in Section 3 "Personal data we collect about you and your child")*

In Section 4 in the Spotify Privacy Policy we provide a general explanation of each legal basis to help you understand the table.

Purpose for processing your data	*Legal basis that permits the purpo*	*Categories of personal data*

		used for the purpose
To provide Spotify Kids to you and your child, including basic content recommendations based on for example age group, country, and time of day. For example, if you have a young child and i is night time, we might position lullabies and bedtime content more prominently i the app for you.	• ***Performance of a Contract*** • ***Legitimate Interest***	• ***User Data*** • ***Usage Data***
To understand, diagnose, troubleshoot, and fix issues with Spotify Kids.	• ***Performance of a Contract*** • ***Legitimate Interest***	• ***User Data*** • ***Usage Data***
To evaluate and develop new features, technologies, and improvements to Spotify Kids.	• ***Legitimate Interest***	• ***User Data*** • ***Usage Data***

To market Spotify Kids, and send offers, promotions, recommendations, and surveys to you as a parent.	• ***Legitimate Interest*** • ***Consent***	• ***User Data*** • ***Usage Data***
To comply with legal obligations, law enforcement requests, and fulfill contractual obligations with third parties such as rights holders.	• ***Compliance with legal obligations*** • ***Legitimate Interest***	• ***User Data*** • ***Usage Data***
To establish, exercise, or defend legal claims.	• ***Legitimate Interest***	• ***User Data*** • ***Usage Data***
To conduct business planning, reporting and forecasting.	• ***Legitimate Interest***	• ***User Data***

		• *Usage Data*
To detect fraud, including fraudulent use of Spotify Kids.	• *Performance of a Contract* • *Compliance with legal obligations* • *Legitimate Interest*	• *User Data* • *Usage Data*

If you require further information about the balancing test that Spotify has undertaken to justify its reliance on the legitimate interest legal basis under the GDPR, please see Section 9 'How to contact us' for further details on how to contact us.

5. Sharing your child's personal data

This section sets out the categories of recipients of the personal data collected or generated through your and your child's use of Spotify Kids.

Personal data you may choose to share

Categories of Recipients	*Reason for sharing*
Third party applications and devices you connect to the Spotify Kids account	*We work with trusted third parties to enable certain features and functionalities on Spotify Kids that you choose to use, such as listening on Spotify Kids through your home speaker. We will only share personal data with these third parties when you as a parent allow us to do so e.g. by selecting the appropriate setting, allowing bluetoo connection on the device, and/or by providing your consent. If you do allow us to do so in that way, we will only share personal data required to enable that integrati such as username/identifier.*

Information we may share

Categories of Recipients	*Reason for sharing*
Categories of Recipients	*Reason for sharing*

Service providers	***So they can provide their services to Spotify.*** ***These service providers may include those we hire to:*** ● ***give customer support*** ● ***operate the technical infrastructure we need to provide Spotify Kids*** ● ***help market products, services, events, and promotions.***
Other Spotify Grou Companies	***Where we have offices, to carry out our daily business operations and so we can maintain and provide Spotify Kids to you.***

Law enforcement a other authorities	***When we believe in good faith it's necessary for us to d so, for example:*** ● ***to comply with a legal obligation*** ● ***to respond to a valid legal process (such as a search warrant, court order, or subpoena)*** ● ***for our own or a third party's justifiable interest, relating to:*** ○ ***national security*** ○ ***law enforcement*** ○ ***litigation (a court case)*** ○ ***criminal investigation*** ○ ***protecting someone's safety*** ○ ***preventing death or imminent bodily harm.***

Purchasers of our business	***Where we sell or negotiate to sell our business to a buy or possible buyer.*** ***In this situation, Spotify will continue to ensure the confidentiality of your personal data and give you notic before your personal data is transferred to the buyer or becomes subject to a different privacy policy.***

6. Data retention and deletion

Retention

We keep your and your child's personal data only as long as necessary to provide you and your child with Spotify Kids and for Spotify's legitimate and essential business purposes, such as:

- ***maintaining the performance of Spotify Kids***
- ***making data-driven business decisions about new features and offerings***
- ***complying with our legal obligations***
- ***resolving disputes.***

Deletion

If you close or request that we close your account, we will delete or anonymise your and your child's personal data so that it no longer identifies you, unless, we are legally allowed or required to keep something.

Here are some examples of situations where we're legally allowed or required to keep some of your personal data:

- *if there is an unresolved issue relating to your Spotify Kids account(s), such as an unresolved claim or dispute*
- *for our legal, tax, audit, and accounting obligations*
- *for our legitimate business interests such as fraud prevention or to maintain the security of our users.*

7. Transfer to other countries

We may transfer your and your child's personal data to other countries as described in Section 7 in the Spotify Privacy Policy.

8. Changes to this Privacy Policy

We may occasionally make changes to this Policy.

When we make material changes to this Policy, we'll provide you with prominent notice as appropriate under the circumstances. For example, we may display a prominent notice within the Spotify Service or send you an email or device notification.

9. How to contact us

For any questions or concerns about this Policy, contact our Data Protection Officer any one of these ways:

- ***use of privacy contact form***
- ***email privacy@spotify.com***
- ***write to us at: Spotify AB, Regeringsgatan 19, 111 53 Stockholm, Sweden***

Spotify AB is the data controller of personal data processed under this Policy.